

24STCV27659 24STCV27659

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-31

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Case Number: 24STCV27659 Hearing Date: August 31, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: August 31,

2026 TRIAL

DATE: Not set.

CASE: S David Sedaghat v. Jerry Roles, et al.

CASE

NO.: 24STCV27659

DEMURRER TO

SECOND AMENDED COMPLAINT

MOVING PARTY/PARTIES: Defendant State of California

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

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Correct Address: Yes

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Served electronically on June 26,

2026 for August 31, 2026 hearing date

CASE HISTORY:

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October 22, 2024: Complaint filed.

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December 18, 2024: Notice of removal

to federal court filed.

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March 18, 2025: Notice of remand

from federal court filed.

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February 17, 2026: First Amended

Complaint filed.

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May 27, 2026: Second Amended

Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR

PROCEEDINGS:

Plaintiff

S David Sedaghat ("Plaintiff"), as a self-represented litigant, initiated this action

based on the alleged wrongful death of his father while his father was a

resident of a long-term care facility. In

his initial complaint, Plaintiff named Defendants California Franchise Tax

Board and California Department of Consumer Affairs. Defendants California Franchise Tax Board and

California Department of Consumer Affairs demurred to the original

complaint. The Court sustained the

demurrer with leave to amend in its order of January 12, 2026. (January 12, 2026 Minute Order.) Plaintiff then filed the first amended

complaint, in which Plaintiff added Defendant California Department of Public

Health. Defendants California Franchise Tax Board,

California Department of Consumer Affairs, and California Department of Public

Health demurred to the first amended complaint.

The Court sustained the demurrer with leave to amend in its order of May

6, 2026. (May 6, 2026 Minute

Order.) Plaintiff filed the second

amended complaint, in which Plaintiff names Defendant State of California

("Defendant") in lieu of the agencies.

Defendant demurs to the operative second amended complaint. In the second amended complaint, Plaintiff asserts one cause of action for negligence against Defendant. Plaintiff has not opposed the demurrer.

TENTATIVE RULING:

Defendants'

demurrer to the second amended complaint is SUSTAINED without leave to amend.

Moving

party to give notice.

DISCUSSION:

Demurrer to Second Amended Complaint

"It is black letter law that a

demurrer tests the legal sufficiency of the allegations in a complaint."

(Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In

ruling on a demurrer, the Court must "liberally construe[]" the allegations of

the complaint. (Code Civ. Proc., § 452.)

"This rule of liberal construction means that the reviewing court draws

inferences favorable to the plaintiff, not the defendant." (Perez v.

Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Per Government Code section 11043, subdivision (c),

Defendants California Franchise Tax Board, California Department of Consumer

Affairs, and California Department of Public Health are separate legal

entities. (Gov. Code, § 11043, subd.

(c).) As such, Plaintiff's election to

name Defendant instead of Defendants California Franchise Tax Board, California

Department of Consumer Affairs, and California Department of Public Health was

improper. Accordingly, the Court

sustains Defendant's demurrer.

Additionally,

per the Government Claims Act, a party with a claim for damages against a

public entity must first file claim directly with that entity. The party

may file a lawsuit only if the public entity denies or rejects the claim. (Gov. Code §§ 905, 945.4; City of Ontario

v. Superior Court (1993) 12 Cal.App.4th 894.) The claims presentation requirement provides

the public entity with an opportunity to evaluate the claim and decide whether

to pay on the claim. (Roberts v. County of Los Angeles (2009) 175

Cal.App.4th 474.) Failure to allege facts demonstrating compliance with

the claims presentation requirement subjects the complaint to a general

demurrer. (State of Calif. v. Superior Court (2004) 32 Cal.4th 1234,

1239.) Plaintiff alleges that he filed his claim on January 6, 2026.

(Second Amended Complaint, p. 3.) Plaintiff was required to file his claim

within one year of accrual of the cause of action. (Gov. Code, §§ 911.4, 911.2, subd. (a).) Plaintiff filed his initial complaint in this

action on October 22, 2024.

Plaintiff's claims necessarily accrued prior to that date. As Plaintiff filed his complaint more than one year before filing his claim, Plaintiff's claim cannot be timely.

Further,

Defendant is a governmental entity.

Government Code section 815 provides that "[a] public entity is not

liable for an injury, whether such injury arises out of an act or omission of

the public entity or a public employee or any other person" except as provided

by statute. (Gov. Code, § 815(a); see *Hoff v. Vacaville Unified School Dist.*

(1998) 19 Cal.4th 925, 932.) "[D]irect

tort liability of public entities must be based on a specific statute declaring

them to be liable, or at least creating some specific duty of care, and not on

the general tort provisions of Civil Code section 1714. Otherwise, the general rule of immunity for

public entities would be largely eroded by the routine application of general

tort principles." (*Eastburn v. Regional Fire Protection Authority* (2003)

31 Cal.4th 1175, 1183.) To state a claim

against a public entity, "every fact essential to the existence of statutory

liability must be pleaded with particularity, including the existence of a

statutory duty." (*Searcy v. Hemet Unified School Dist.* (1986) 177

Cal.App.3d 792, 802.) Plaintiff's cause

of action against Defendant is for negligence, and does not include any

statutory basis. As such, Plaintiff has

not alleged a claim against Defendant.

Furthermore, if Plaintiff contends Defendant is liable for failing to

investigate certain providers of elder care, Defendant is immune from

liability. (Gov. Code, § 818.2.) Likewise, Defendant is not liable for failing

to protect Plaintiff's father from elder abuse that private parties

perpetrated. (Golick v. State of

California (2022) 82 Cal.App.5th 1127, 1143-1144.)

The Court

provided Plaintiff with two opportunities to amend to allege claims against

governmental entities. Plaintiff failed

to do so. As such, leave to amend would

be futile, and is unwarranted. (See *Grieves v. Superior Court* (1984) 157

Cal.App.3d 159, 168.)

Accordingly,

Defendants' demurrer to the second amended complaint is SUSTAINED without leave

to amend.

Moving

party to give notice, unless waived.

IT

IS SO ORDERED.

Dated: August 31, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.